

Law on Property Design Supremacy

Chapter I: General Provisions

Article 1: Purpose

This law establishes the supremacy of the physical design and actual use of immovable property over conflicting legal documentation. It aims to protect communal interests, ensure fair access, and regulate ownership structures in cases where property design implies shared use, thereby preventing manipulative alterations of property documents that harm third parties.

Article 2: Scope

This law applies to all immovable properties, including land plots, buildings, subdivisions, and common areas, within the national jurisdiction.

Article 3: Definitions

For the purposes of this law:

- a) Property Owner: Any person or legal entity holding legal title or claim to immovable property.
- b) Physical Design: The existing visible, constructed, or traditionally accepted layout and usage of property, including boundaries, pathways, easements, and communal areas, as evidenced by buildings, fences, roads, landscaping, and habitual use.
- c) Legal Documents: Property deeds, titles, subdivision plans, cadastral maps, permits, contracts, or any written instruments affecting ownership or usage rights over property.
- d) Common Pathway: A path, road, or corridor physically designed, constructed, or regularly used for access by multiple owners or members of a community, regardless of its formal description or absence in legal records.
- e) Social Ownership: A form of co-ownership or collective right over portions of property designed or used communally, ensuring collective access, use, governance, and maintenance responsibilities.

Chapter II: Primacy of Physical Design over Legal Documents

Article 4: Design Supremacy Principle

1. The existing physical design and established use of a property shall prevail over any conflicting legal documents.
2. No property owner may assert rights or enforce claims based on documents that contradict or distort the property's physical reality or communal use arrangements.
3. All government agencies, including land registries, cadastral offices, and courts, shall prioritize physical design and usage evidence when resolving property boundary, access, or ownership disputes.

Article 5: Prohibition on Misrepresentative Documentation

1. It is unlawful for any property owner to draft, register, or attempt to enforce documents that seek to alter or conceal shared pathways, communal areas, or access rights contrary to their physical existence.
2. Documents purporting to privatize common pathways or communal areas shall be null and void to the extent that such areas exist physically or by long-standing customary use.
3. Intentional falsification or manipulation of property documents to circumvent this law shall constitute fraud and be subject to criminal prosecution.

Chapter III: Protection of Common Use and Social Ownership

Article 6: Protection of Common Pathways and Spaces

1. All pathways, roads, passages, parks, or common-use areas physically designed or habitually used by multiple parties shall be deemed common and socially owned when not expressly privatized by consistent physical design.
2. Property owners shall not erect fences, gates, walls, or other obstructions that impede lawful communal access to these areas.
3. Any such obstruction found shall be subject to immediate removal under enforcement provisions.

Article 7: Framework for Social Ownership

1. Areas designed or used for communal purposes shall automatically be subject to social ownership arrangements.
2. Social ownership implies joint rights and responsibilities among all affected owners or users for management, maintenance, improvement, and governance of the shared property elements.
3. Any sale, transfer, or alteration affecting socially owned property must occur with the consent of all co-owners or lawful users.

4. The government shall maintain registers recording such social ownership areas and their stakeholders.

Chapter IV: Enforcement Mechanisms

Article 8: Establishment of Property Design and Usage Inspectorate (PDUI)

1. The Ministry of Housing and Urban Development shall establish the Property Design and Usage Inspectorate (PDUI), empowered to:
 - a) Investigate violations of this law.
 - b) Conduct physical inspections and verify design conformity.
 - c) Issue compliance directives and orders.
 - d) Coordinate with cadastral and land registry authorities.
 - e) Facilitate mediation and dispute resolution.
2. PDUI shall have regional offices for effective local enforcement.

Article 9: Complaint and Investigation Procedures

1. Any individual or entity may file complaints to PDUI or the local municipal authority regarding violations of this law.
2. Upon receipt, PDUI shall inspect the site within 30 calendar days, documenting the physical design and use and collecting testimonies from stakeholders.
3. PDUI shall issue a preliminary report within 45 days and a detailed investigation report within 60 days.
4. Stakeholders shall be invited to a hearing to present evidence and contest findings.

Article 10: Compliance Orders and Document Corrections

1. Upon establishing a violation, PDUI shall issue a Compliance Order demanding rectification within a reasonable period, generally within 30 calendar days.
2. Orders may require:
 - a) Removal of unlawful fences or obstructions.
 - b) Correction, annulment, or re-issuance of conflicting documents in coordination with land registry offices.
 - c) Recognition of social ownership and registration of communal property rights.
3. Failure to comply with Compliance Orders shall trigger enforcement actions as detailed in Article 11.

Article 11: Enforcement and Penalties

11.1 Administrative Sanctions

- a) First Violation: An administrative fine ranging from 5,000 to 15,000 currency units per infraction, scaled according to severity and extent.
- b) Repeated Violations: Fines of up to 75,000 currency units plus daily penalties of 2,000 currency units for continued non-compliance.
- c) PDUI may order forced removal of illegal obstructions; expenses incurred shall be imposed as liens on the offending property.

11.2 Criminal Liability

- a) Deliberate falsification, forgery, or fraudulent manipulation of property documents to override physical design and communal use constitutes a criminal offense.
- b) Sanctions include imprisonment from six months up to three years and/or fines equivalent to the monetary value of affected property rights.
- c) Criminal proceedings require prosecution by the state and follow due process under criminal law.

11.3 Civil Liability

- a) Property owners causing demonstrable harm, including obstruction to access, diminution of property value, or loss of usage rights, shall be liable for compensatory damages.
- b) Injured parties may claim damages in civil courts, including but not limited to restitution, injunctions, and compensation.

Chapter V: Dispute Resolution and Appeals

Article 12: Property Design Tribunal

1. A specialized tribunal shall be established to adjudicate disputes arising under this law, including conflicts between physical design and documentation and social ownership issues.
2. The tribunal shall include experts in property law, urban planning, and engineering.
3. Decisions shall be binding and enforceable; appeals on procedural grounds are permitted to ordinary courts.

Article 13: Mediation and Alternative Dispute Resolution

The PDUI shall facilitate mediation sessions to encourage amicable settlement of disputes prior to tribunal referral.

Chapter VI: Transitional and Miscellaneous Provisions

Article 14: Review and Regularization of Existing Properties

1. Owners of existing property parcels with conflicting documentation and design must apply for review by PDUI within two years from the law's enactment.
2. PDUI will conduct inspections and coordinate necessary adjustments to documents and ownership records.

Article 15: Interim Measures

1. PDUI may issue immediate interim rulings ordering suspension or removal of unlawful obstructions pending final determination to protect public and communal access rights.

Article 16: Public Awareness and Education

The Ministry shall develop educational programs and public awareness campaigns to inform property owners, developers, and the public about the design supremacy principle and social ownership obligations.

Article 17: Implementation Regulations

The Ministry shall publish detailed regulations within six months of enactment covering procedures for inspections, document corrections, fines, appeals, and social ownership registration processes.

Chapter VII: Final Provisions

Article 18: Relation to Other Laws

This law shall supersede any conflicting provisions in existing property, civil, and administrative laws. All authorities must apply its principles consistently.

Article 19: Entry into Force

This law shall take effect ninety (90) days following its official publication.

Summary Highlights

- Physical design and actual use override conflicting legal documents.
- Common pathways and community areas cannot be privatized solely by paperwork.
- Social ownership protects shared areas and requires collective governance.
- PDUI enforces compliance via investigation, orders, fines, and coordination with registries.
- Severe penalties, including criminal sanctions, apply for fraud or obstruction.
- Disputes resolved through mediation and specialized tribunal mechanisms.